LEGAL RECOURSE AGAINST DEEPFAKES

Though there is no specific law against deepfakes currently, the Information Technology (IT) Act, 2000, the Indian Penal Code (IPC), 1860, and the Copyright Act, 1957, may deal with such content

IT ACT, 2000

Section 66D: *Cheating by personation*

Punishment

- Imprisonment of up to 3 years and fine up to Rs 1 lakh

Section 66E: *Violation of privacy; capturing/ circulating image of a person's private areas without consent*

Punishment

- Imprisonment of up to 3 years or fine up to Rs 2 lakh, or both

Section 67: *Publishing obscene material in electronic form*

Punishment

- Imprisonment of up to 3 years and fine of up to Rs 5 lakh in first conviction; up to 5 years and Rs 10 lakh subsequently

Sections 67A & 67B
Material containing sexually explicit acts in electronic form and material depicting children in such acts

Punishment

- Imprisonment of up to 5 years and fine up to Rs 10 lakh for first conviction; up to 7 years and Rs 10 lakh subsequently

Amendments to IT rules
Latest changes to the Information Technology (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021, introduce due diligence obligations for social media as well as gaming intermediaries. The Act sets down rules for any information that

- infringes a patent, trademark, copyright or other proprietary rights
- is false/ misleading
- is obscene, pornographic, paedophilic, invasive of privacy
- insults or harasses on the basis of gender
- is racially or ethnically objectionable
- is harmful to children
- impersonates another person

Intermediaries are required to remove any such information published on their platforms as early as possible, and under 36 hours of being notified by a court or a government agency. **Failure to do so is a violation of the 'safe harbour' conditions that give platforms immunity**

COPYRIGHT ACT

Sections 63, 63A
Copyright infringement

Punishment

- Imprisonment of 6 months-3 yrs and Rs 50,000-Rs 2 lakh fine for first conviction; 1-3 years and Rs 1-2 lakh subsequently. However, court may impose imprisonment or fine less than the minimum if the infringement is not for gain in the course of trade or business

IPC

Section 499
Defamation

Punishment
Imprisonment of up to two years, or fine, or both

There are various other sections under IPC that pertain to obscenity and those that protect women against sexual offences

"One common misperception is that the law doesn't keep up fast with technology," says Priyanka Khimani, a legal expert in the fields of entertainment and music rights whose clients include A.R. Rahman, Shankar-Ehsaan-Loy and the estate of Lata Mangeshkar. "There are enough mechanisms in place, both civil and criminal remedies. If a deepfake video is going viral, you can file an FIR with the cyber cell and they assist you in tracking down the IP addresses and identifying where it is originating from. It is a faster remedy than going to the court and filing a suit." But it also puts the onus on law enforcement authorities to act quickly. Celebrities were contending with violation of copyright and identity even before deepfakes, she points out.

Bollywood actor Anil Kapoor recently won an injunction to protect his personality rights from unauthorised use. "My intent was to seek protection of my personality rights and prevent any misuse for commercial gains, particularly in the current scenario with rapid changes in technology and tools like artificial intelligence," Kapoor told *Variety* magazine. "It's not only for me. Today, I'm there to protect myself, but when I'm not there, the family should have the right to protect my [personality] and gain from it in future."

In the case of deepfake porn, though, measures such as an injunction can have limitations, says Khimani. "We are completely underestimating how deeply something like this can be misused not only for someone who is high-profile but for everyday citizens, especially women. I feel it has the potential of really turning the porn industry on its head," she says. "As fanciful as a John Doe injunction [a legal order that allows a person or entity to take legal action against an unknown party or parties] filed against the world at large sounds, I don't know if it is an effective remedy. How do you enforce it? How are people being informed about the consequences and penalties they may incur?" she asks.

Tech expert Bindra reckons there's no magic bullet to dealing with deepfakes. "It's continuously going to be an arms race...like we have had in the antivirus scenario," he says. He is referring to the emergence of big antivirus companies in the years immediately after the internet boom to tackle malicious software. Bindra foresees a full start-up ecosystem developing along those lines to combat deepfakes. But technology, he says, is only a part of the solution. While social networks have to be more proactive in weeding out deepfakes, the regulatory framework also needs a leg-up with stronger laws and exemplary punishment.

There is also a fourth dimension that holds out the promise of a long-term solution—education. "Our education system probably will have to start tackling this at a younger level itself," says Bindra, pointing to how Finland has been one of the early movers on this front. The Nordic nation, which incorporated information literacy into its school curriculum in 2016, ranked first among 41 European countries in a media literacy index compiled in 2022 by the non-profit Open Society Institute, Sofia, to assess the resilience potential to the impact of fake news and the post-truth phenomenon. Catch them young—there is no better time to heed the saying. ■

with Suhani Singh and Pradip R. Sagar